

#	Case Name	Tentative
		SLAPP motion is entitled to an award of fees. This award is mandatory. <i>Frym v. 601 Main Street LLC</i> (2022) 82 Cal.App.5th 613. The word “shall” in the statute leaves no room for the court to exercise equitable discretion to deny the fee award altogether based on the conduct of the prevailing defendant. Ca. Civ. Pro. Section 425.16. Fernandez shall give notice of this ruling.
57.	Bales v. Belenardo 2021-01201005	Plaintiffs Dean Bales and Laura Bales’s motion to strike or tax costs of defendants John and Susan Belenardo is GRANTED in its entirety. The Bales are determined to be the “prevailing parties” for purposes of an award of costs under Ca Civ. Pro. § 1032(b). Defendants are not entitled to costs. Defendants John and Susan Belenardo’s motion to strike or tax costs is GRANTED in part. Ca Civ. Pro. § 1032(b) provides that a prevailing party is entitled as a matter of right to recover costs in any action or proceeding. The statute defines prevailing party at § 1032(a)(4) to include the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. This provision also states that if any party recovers other than monetary relief and in situations other than as specified, the prevailing party shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides. With regard to cost awards under the general Code of Civil Procedure prevailing party framework, there is a single prevailing party. <i>Sharif v. Mehusa, Inc.</i> (2015) 241 Cal.App.4th 185. This means that even where each side achieves success on different claims or phases, the court must ultimately identify one party as the overall victor — or determine that neither party prevailed — rather than splitting the designation between both sides. Here there is no dispute that the Belenardos prevailed on some issues in Phase I of the trial. There is also no dispute that Dean Bales prevailed against Susan Belenardo in Phase II of the trial.

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		Having considered the rulings and judgments entered in this matter, the court finds that Dean Bales is the prevailing party for purposes of the cost memorandum and C.C.P. § 1032. <u>Items the Belenardos seek to tax</u> A properly verified memorandum of costs is considered prima facie evidence that the costs listed were necessarily incurred. <i>Rojas v. HSBC Card Services Inc.</i> (2023) 93 Cal.App.5th 860. If items on a memorandum of costs appear to be proper charges on their face, those items constitute prima facie evidence that the costs, expenses, and services are proper and necessarily incurred. <i>Id.</i> If the cost item is expressly allowed by statute and appears proper on its face, the burden is on the objecting party — i.e., the party moving to tax costs — to show the costs to be unnecessary or unreasonable. <i>Rozanova v. Uribe</i> (2021) 68 Cal.App.5th 392. Even where a cost item appears proper on its face, if the item is properly objected to, it is put in issue and the burden of proof shifts back to the party claiming the costs. <i>Ladas v. California State Auto. Assn</i> (1993) 19 Cal.App.4th 761. Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court. Item #1 – Filing and motion fees - \$1,506.40 The Belenardos argue this item on the premise that since the Bales did not prevail on Phase I of the trial, the Bales should not recover <i>any</i> filing fees. The court has already determined that Dean Bales is the prevailing party. The Belenardos request the court, in the alternative, to strike the portion of fees attributable to claims on which plaintiffs did not prevail. This assertion doesn't properly raise an objection to the cost, and therefore doesn't require the Bales to provide greater detail. The motion is denied as to Item 1. Item #2 - Jury Fees - \$150.00. The Belenardos argue this item on the grounds that a jury was not utilized in Phase I of the trial. But the court looks at the whole case, not slices of it, when assessing costs. Jury fees are recoverable as costs even when a jury was not used in Phase I of a bifurcated trial. Under California Code of

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		Civil Procedure section 1033.5(a)(1), filing, motion, and jury fees are allowable as costs under section 1032. The motion is denied as to Item 2. Item #4 - deposition costs - \$9,800.00 The Belenardos argue this item should be reduced to zero because the depositions were taken solely to address the property and CC&R related claims of Phase I. The court is not persuaded that this argument properly puts at issue this item of cost. Further, in their own memorandum of costs, the Belenardos seek over \$10,000 for the same item, which is evidence of the cost being reasonable. The motion is denied as to Item 4. Item #5 - Service of process - \$1,843.40 The Belenardos persuasively challenge that the service of process fees, as a former party (the Deerfield Community Association) was also served, and ultimately dismissed without prejudice. (ROA 12, 623). The Belenardos have put this cost item at issue, requiring evidence from Dean Bales to support the claimed item. The Bales have failed to present evidence. The court grants the motion as to Item 5. Item #8 - Witness Fees - \$12,500.00 and Item #11 - Court reporter fees - \$1,700.00 The Bales do not oppose the motion to these items. The court grants the motion as to Items 8 and 11. Item #14 - Fees for electronic filing or service - \$1,000.00 The Belenardos argue this item on the premise that since the Bales did not prevail on Phase I of the trial, the Bales should not recover <i>any</i> electronic filing fees. The court has already determined that Dean Bales is the prevailing party. The Belenardos request the court, in the alternative, to strike the portion of fees attributable to claims on which plaintiffs did not prevail. This assertion doesn't properly raise an objection to the cost, and therefore doesn't require the Bales to provide greater detail.

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		The motion is denied as to Item 14. In sum, the Belenardos' motion to tax is GRANTED as to Item #5 in the amount of \$1,843.40; Item #8 in the amount of \$12,500.00; and Item #11 in the amount of \$1,700.00--for a total reduction of \$16,043.40. All further requested relief is DENIED. Dean Bales shall give notice of this ruling.
58.	Riggs v. Kingdom Hall of Jehovah's Witnesses 2026-01551506	Defendants Watchtower Bible and Tract Society of New York, Inc., and Christian Congregation of Jehovah's Witnesses, Inc.'s Special Motion to Strike is DENIED. <u>Defendants' Request for Judicial Notice</u>: The court finds Exhibit A to be immaterial to the determination of this motion. <u>Defendants' Objections to the Declaration of Jeff Grotke</u>: Objection No. 1 is immaterial. Objection Nos. 2-9 are SUSTAINED. <u>Defendants' Objections to the Declaration of Shelah Riggs</u>: Objection Nos. 10, 11, 18-21, 23 are SUSTAINED. Objection Nos. 12, 14-17, and 22 are OVERRULED. The Court will not consider the sur-reply filed by Plaintiff (ROA 122) as it was not authorized by the Court. Defendants' motion is timely and the Court has discretion to hear the motion. (See CRC, Rule 3.1326; <i>Karnazes v. Ares</i> (2016) 244 Cal.App.4th 344, 352 [finding that a defendant who successfully obtains a change of venue has 30 days to file an anti-SLAPP motion].) Defendants move to strike Plaintiff's Complaint on the grounds that it arises from protected activity under California's anti-SLAPP statute. Code of Civil Procedure section 425.16 provides: "A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim." (Code Civ. Proc., § 425.16, subd. (b)(1).) "Section 425.16 posits ... a two-step process for determining whether an action is a [strategic lawsuit against public participation]. First, the court decides whether the defendant